

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:  
Date Purchased:

-----X  
JERMAIL MANUEL,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. CHRISTOPHER CHIN, Sgt.  
VLADIMIR GARCIA, and OFFICERS JOHN AND  
JAMES DOE, names presently unknowable by Plaintiff  
and meant to designate additional offending officers,

Plaintiff designates  
BRONX County as the  
place of trial.  
The basis of venue is:  
CPLR 504 (3)

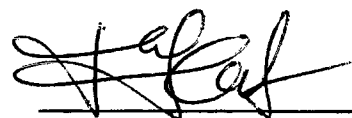
Defendants.  
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**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y.

June 24, 2019



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff  
888 Grand Concourse  
Suite 1-O  
Bronx, NY 10451  
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL  
100 Church Street, 4th Floor, Law Dept.  
New York, New York 10007

P.O. Christopher Chin, Shield No. 20543 and Sgt. Vladimir Garcia, Shield No. 4857  
47th Precinct, 4111 Laconia Avenue, Bronx NY 10466

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
JERMAIL MANUEL,

Plaintiff,

Index No.:

**VERIFIED COMPLAINT**

-against-

CITY OF NEW YORK, P.O. CHRISTOPHER CHIN,  
Sgt. VLADIMIR GARCIA and OFFICERS JOHN AND  
JAMES DOE, names presently unknowable by Plaintiff  
and meant to designate additional offending officers,

Defendants.  
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,  
respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF**  
**THE PLAINTIFF JERMAIL MANUEL**

1. At the time of the commencement of this action, Plaintiff JERMAIL MANUEL  
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and  
State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and  
still is, a Municipal Corporation and body politic, duly formed, organized and existing  
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about September 18, 2016 through July 18, 2018, P.O.

CHRISTOPHER CHIN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about September 18, 2016 at approximately 4 A.M., through July 18, 2018, and throughout the hereinafter mentioned prosecution, P.O. CHRISTOPHER CHIN was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about September 18, 2016 through July 18, 2018, Sgt. VLADIMIR GARCIA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about September 18, 2016 at approximately 4 A.M. through July 18, 2018, and throughout the hereinafter mentioned prosecution, Sgt. VLADIMIR GARCIA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about September 18, 2016 through July 18, 2018, OFFICERS JOHN AND/OR JAMES DOE , whose names are presently unknowable to Plaintiff but necessarily known by the defendants, and are meant to designate other officers

involved in the prosecution of the Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about September 18, 2016 through July 18, 2018 and throughout the hereinafter mentioned prosecution, OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

11. That on or about September 19, 2016 through July 18, 2018 the Defendants initiated and continued a prosecution of Plaintiff without probable cause and with actual malice.

12. That said prosecution stemmed from an incident that commenced at approximately 4 A.M., in the vicinity of The northwest corner of Cameron Place and Walton Avenue, Bronx, New York, whereat the plaintiff JERMAIL MANUEL was approached, questioned, detained and arrested.

13. That at the time and place above mentioned the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact when making false accusations against him that he was Operating a Motor Vehicle While Under the Influence of Alcohol, when they knew, or in the exercise of reasonable care, should have known those accusations were false.

14. That the defendants, their agents, servants and/or employees initiated and continued a prosecution of Plaintiff accusing him of Operating a Motor Vehicle While Under the Influence of Alcohol when there was, in fact, no probable cause to arrest and prosecute Plaintiff for that charge and initiated the aforesaid prosecution with actual malice.

15. That the defendants P.O. CHRISTOPHER CHIN, Sgt. VLADIMIR GARCIA and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal action against Plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

16. That defendants, their agents, servants and/or employees continued to prosecute Plaintiff and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

17. That all criminal charges brought against Plaintiff, which were brought under docket number 2016BX040952 in the Criminal Court of the City of New York, County of Bronx, regarding Plaintiff's arrest of September 18, 2016 and prosecuted under VTL 1192(1), (2) and (3) were dismissed after acquittal of all charges and the prosecution was terminated in Plaintiff's favor on July 18, 2018.

18. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of JERMAIL MANUEL.

19. As a result of the malicious prosecution, Plaintiff's liberty was threatened and Plaintiff suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately six hundred and sixty seven days.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly prosecuting innocent citizens, and engaging in a policy and procedure of prosecuting persons arrested without reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas and/or to to gain overtime pay and/or further employment enhancement and opportunities, and repeatedly providing false information and testimony without reprimand to the offending officers.

21. That said illegal and unlawful prosecutions of innocent persons without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter

actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances, and as detailed below.

22. Said policy, practice and procedure of having arrest quotas and/or productivity goals and/or arrests and protections initiated for the purposes of enhanced overtime pay and employment opportunities, which results in the false arrests and protections of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., brought as a class action for persons similarly situated, in the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath, along with other evidence including statistical analysis, that the NEW YORK CITY POLICE DEPARTMENT routinely arrests and prosecutes primarily minority populations without a legal reason to do so, and are required or expected to do so, for amongst other nefarious reasons, to satisfy arrest quotas and enhance employment opportunities.

24. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

25. Additionally, defendants as named herein and their supervisors and commanders, have condoned, permitted and caused a policy, practice and procedure of arresting and prosecuting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under false pretense, and falsely swearing that they observed innocent persons engaged in illicit conduct such as being present in a car whose ignition is engaged when it is in fact not so engaged, and other pre-textual excuses, and falsely alleging and prosecuting said innocent persons for the nefarious reasons stated above.

26. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at [http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig\\_nypd\\_use\\_of\\_force\\_report\\_-\\_oct\\_1\\_2015.pdf](http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf). That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and



fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

27. The aforesaid failures regarding the practice of failing to properly and adequately discipline Defendant Sgt. VLADIMIR GARCIA for abuse of power, to track his disciple, and his perfunctory punishment directly caused the abuse of power, injury and insult visited upon the Plaintiff complained of herein, which was hastened by the failure of other Defendants to intercede to prevent said insult and injury.

28. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

29. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free

from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

30. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

31. That as a result of the foregoing, the plaintiff JERMAIL MANUEL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF**  
**OF THE PLAINTIFF JERMAIL MANUEL**

32. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 31 as though more fully set forth herein.

33. That on or about October 2, 2018, and within 90 days after the claims herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place

where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

34. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

35. That the CITY OF NEW YORK did demand and notice and Plaintiff did attend and give testimony at an oral examination pursuant to General Municipal Law §50h on January 15, 2019.

36. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

37. That defendants, their agents, servants and/or employees initiated a prosecution of plaintiff and continued to deny and threaten plaintiff's liberty and freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

38. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

39. That the defendants P.O. CHRISTOPHER CHIN, Sgt. VLADIMIR GARCIA and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false

information to the prosecutors of the criminal action against Plaintiff and/or falsely and/or misleadingly testified against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

40. That all criminal charges brought against Plaintiff, which were brought under docket number 2016BX040952 in the Criminal Court of the City of New York, County of Bronx, regarding Plaintiff's arrest of September 18, 2016, and prosecuted under VTL 1192(1), (2) and (3), were dismissed after acquittal of all charges, and the prosecution was terminated in Plaintiff's favor on July 18, 2018.

41. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of JERMAIL MANUEL.

42. As a result of the malicious prosecution, Plaintiff's liberty was threatened and Plaintiff was caused to suffer the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately six hundred and sixty seven days

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the Plaintiff JERMAIL MANUEL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF**

**OF THE PLAINTIFF JERMAIL MANUEL**

45. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

47. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrests and prosecution of individuals.

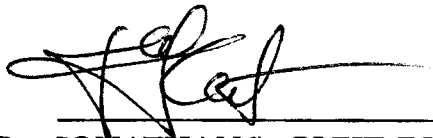
48. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

49. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff JERMAIL MANUEL had his freedom threatened and rights abridged under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled

and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second and Third Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.  
June 24, 2019

  
By: **JONATHAN L. GLEIT, ESQ.**  
*Attorney for Plaintiff*  
**JERMAIL MANUEL**

888 Grand Concourse  
Suite 1-O  
Bronx, NY 10451  
(718) 742-0200

To:  
CITY OF NEW YORK  
CORPORATION COUNSEL  
100 Church Street, 4th Floor, Law Dept. , New York, New York 10007

P.O. Christopher Chin, Shield No. 20543 and Sgt. Vladimir Garcia, Shield No. 4857  
47th Precinct, 4111 Laconia Avenue, Bronx NY 10466

**ATTORNEY'S VERIFICATION**

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

JERMAIL MANUEL

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

June 24, 2019



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JONATHAN L. GLEIT, ESQ.